

An Act

ENROLLED SENATE
BILL NO. 1772

By: Pederson of the Senate

and

Johns of the House

An Act relating to motor vehicles; amending 47 O.S. 2021, Sections 12-201, 12-202, 12-203.1, 12-203.2, 12-203.4, 12-213, 12-216, 12-217, 12-702, 12-703, and 12-706, which relate to lamps and lighting devices; updating statutory language; requiring use of lamps and illuminating devices at certain times; requiring use of lamps and illuminating devices under certain conditions; updating statutory language; updating statutory references; and providing an effective date.

SUBJECT: Motor vehicle safety

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 12-201, is amended to read as follows:

Section 12-201. A. The United States Department of Transportation specifications and standards for headlamps, auxiliary driving lamps, tail lamps, signal lamps, reflectors, and other lighting equipment and signal devices, pursuant to 49 C.F.R., Section 571.108, are hereby adopted by ~~the State of Oklahoma~~ this state.

B. Except as otherwise provided in ~~this chapter~~ Section 12-101 et seq. of this title and subject to exceptions for parked vehicles, every vehicle upon a highway within this state shall properly display all lamps and illuminating devices as required by law:

1. At any time from ~~one-half (1/2) hour after~~ sunset to ~~one-half (1/2) hour before~~ sunrise, also referred to in ~~this chapter~~ Section 12-101 et seq. of this title as nighttime; and

2. At any other time when a motor vehicle's electric windshield wiper mechanism is in use as a result of inclement weather or, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the highway are not clearly discernible at a distance of one thousand (1,000) feet or less.

C. All lamps required by ~~this chapter~~ Section 12-101 et seq. of this title shall display a steady light except as otherwise prescribed by ~~this chapter~~ Section 12-101 et seq. of this title. Any required individual lamp may be combined or incorporated with any other required individual lamp if the combined or incorporated lamps meet all of the individual lighting requirements ~~of this chapter~~ for each individual lamp contained therein within such combined or incorporated lamps.

D. No lamp, other than a headlamp, displayed on any vehicle shall project a glaring light; provided, every headlamp shall comply with ~~Section 12-222~~ 12-203.2 of this title.

SECTION 2. AMENDATORY 47 O.S. 2021, Section 12-202, is amended to read as follows:

Section 12-202. A. Any requirement ~~of this chapter~~ provided in Section 12-101 et seq. of this title as to the distance from which certain lamps and devices shall render objects visible, or within which such lamps or devices shall be visible, shall apply during the times ~~stated in~~ provided by subsection B of Section 12-201 of this title, in respect to a vehicle without load when upon a straight, level, unlighted highway, under normal atmospheric conditions unless a different time or condition is expressly stated.

B. Any requirement ~~of this chapter~~ provided in Section 12-101 et seq. of this title as to the mounted height of lamps or devices shall mean from the center of such lamp or device to the level ground upon which the vehicle stands when such vehicle is without a load.

SECTION 3. AMENDATORY 47 O.S. 2021, Section 12-203.1, is amended to read as follows:

Section 12-203.1. A. At all times ~~specified in~~ provided in subsection B of Section 12-201 of this title, at least two lighted headlamps shall be displayed, one on each side at the front of every motor vehicle, except when such vehicle is parked subject to the regulations governing lights on parked vehicles, as provided in Section 12-214 of this title.

B. Whenever a motor vehicle equipped with headlamps as herein required is also equipped with any auxiliary driving lamps or a spot lamp or any other lamp on the front ~~thereof~~ of such motor vehicle projecting a beam of intensity greater than three hundred (300) candlepower, not more than a total of four of any such lamps on the front of a vehicle shall be lighted at any one time when upon a highway.

C. The driver of any vehicle shall comply with the provisions of Section 12-217 of this title regarding the use of alternate headlamp equipment.

SECTION 4. AMENDATORY 47 O.S. 2021, Section 12-203.2, is amended to read as follows:

Section 12-203.2. Whenever a motor vehicle is being operated on a roadway, or shoulder adjacent ~~thereto~~ to such, during the times ~~specified~~ provided in subsection B of Section 12-201 of this title, the driver shall use a distribution of light, or composite beam, directed high enough and of sufficient intensity to reveal persons and vehicles at a safe distance in advance of the vehicle, subject to the following requirements and limitations:

1. Whenever a driver of a vehicle approaches an oncoming vehicle within one thousand (1,000) feet, such driver shall use a distribution of light, or composite beam, so aimed that the glaring rays are not projected into the eyes of the oncoming driver. The lowermost distribution of light, or composite beam, specified in paragraph 2 of subsection C of Section 12-203 of this title shall be deemed to avoid glare at all times, regardless of road contour and loading.

2. Whenever the driver of a vehicle follows another vehicle within six hundred (600) feet to the rear, such driver shall use a distribution of light permissible under ~~this chapter~~ the provisions of Section 12-101 et seq. of this title, other than the uppermost distribution of light specified in paragraph 1 of subsection C of Section 12-203 of this title.

SECTION 5. AMENDATORY 47 O.S. 2021, Section 12-203.4, is amended to read as follows:

Section 12-203.4. Any motor vehicle operated at a speed of twenty (20) miles per hour or less may be operated under the conditions ~~specified~~ provided in subsection B of Section 12-201 of this title when equipped with two lighted lamps upon the front ~~thereof~~ of such motor vehicle capable of revealing persons and objects one hundred (100) feet ahead in lieu of lamps required in Section 12-203 or 12-203.3 of this title.

SECTION 6. AMENDATORY 47 O.S. 2021, Section 12-213, is amended to read as follows:

Section 12-213. A. Whenever the load upon any vehicle extends to the rear four (4) feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load, at the ~~time specified~~ times provided in subsection B of Section 12-201 of this title:

1. Two red lights and two red reflectors positioned to indicate maximum width; and

2. One red light facing to each side positioned to indicate maximum overhang.

The required lights and reflectors may be mounted in combination at each side of the vehicle and shall be visible from a distance of one thousand (1,000) feet.

B. At any other time on any such vehicle, there shall be displayed at the extreme rear end of such load red flags not less than twelve (12) inches square marking the extremities of such load at each point where a lamp would otherwise be required by this section.

SECTION 7. AMENDATORY 47 O.S. 2021, Section 12-216, is amended to read as follows:

Section 12-216. A. Animal-drawn vehicles and vehicles referred to in subsection C of Section 12-101 of this title, not specifically required by the provisions of ~~this chapter~~ Section 12-101 et seq. of this title to be equipped with lamps or other lighting devices, shall, at all times ~~specified~~ provided in subsection B of Section 12-201 of this title, be equipped with at least one lamp emitting a white light visible from a distance ~~of~~ not less than one thousand (1,000) feet to the front of ~~said~~ such vehicle, and shall also be equipped with two lamps displaying red light visible from a distance ~~of~~ not less than one thousand (1,000) feet to the rear of ~~said~~ such vehicle or, as an alternative, one lamp displaying a red light visible from a distance ~~of~~ not less than one thousand (1,000) feet to the rear and two red reflectors visible for distances of six hundred (600) feet to one hundred (100) feet to the rear when illuminated by the lower beams of headlamps.

B. The failure on the part of an owner or driver of any vehicle specified in this section to display any lamp, lighting device, or reflector required by this section shall not relieve the operator of a motor vehicle from negligence in the event of a collision.

SECTION 8. AMENDATORY 47 O.S. 2021, Section 12-217, is amended to read as follows:

Section 12-217. A. As used in ~~this article~~ Section 12-101 et seq. of this title:

1. "Auxiliary driving lamp" means a lamp mounted to provide illumination to the front of a motor vehicle;

2. "Daytime running lamp" means a lamp mounted to provide illumination to the front of a motor vehicle that will assist to identify its presence to other vehicles and pedestrians at times other than those ~~specified~~ provided in subsection B of Section 12-201 of this title;

3. "Front fog lamp" means a lamp mounted to provide illumination to the front of a motor vehicle during conditions of rain, snow, fog, dust, or other atmospheric disturbances;

4. "Rear fog lamp" means a lamp mounted to provide illumination to the rear of a motor vehicle during conditions of rain, snow, fog, dust, or other atmospheric disturbances;

5. "Off-road lamp" means any lamp designed and manufactured solely for off-road use; and

6. "Spot lamp" means a movable lamp which emits a brilliant light with a focused beam for examining objects, street address numbers, and other things alongside the road.

B. Any motor vehicle may be equipped with not to exceed two spot lamps which shall not be used in substitution of headlamps.

C. The operator of any motor vehicle:

1. Which has in use a spot lamp shall, upon the approach of another vehicle from any direction within one thousand (1,000) feet, immediately turn ~~said~~ such spot lamp off;

2. Shall not use or turn on a spot lamp when approaching or following another motor vehicle within one thousand (1,000) feet; and

3. Shall not use or turn on a spot lamp to cause a vehicle to yield right-of-way or stop.

The provisions of this subsection shall not apply to operators of authorized emergency vehicles.

D. 1. A motor vehicle may be equipped with not to exceed two front fog lamps or two rear fog lamps which shall only be used when visibility, as described in paragraphs 3 and 4 of subsection A of this section, is limited to one-half (1/2) mile or less.

2. Front fog lamps shall be mounted on the same level on opposite sides of the front of the vehicle at or below the level of the headlamps. Front fog lamps may be used with lower beam

headlamps or switch controlled in conjunction with the headlamps and may be used, at the discretion of the driver, with either low or high beam headlamps. Front fog lamps shall not be used in substitution of headlamps, when headlamps are required.

E. A motor vehicle may be equipped with not to exceed two auxiliary driving lamps mounted at a height of more than forty-two (42) inches from the ground. The auxiliary driving lamps may be used with lower beam headlamps or switch controlled in conjunction with the headlamps and may be used, at the discretion of the driver, with either low or high beam headlamps.

F. Every fog lamp or auxiliary driving lamp used upon a motor vehicle shall be so adjusted and aimed that no part of the high intensity portion of the beam shall, at a distance of twenty-five (25) feet, rise above the horizontal plane passing through the center of the lamp.

G. ~~Notwithstanding any other provision of law, a~~ A vehicle may be equipped with off-road lamps for use as headlamps while the vehicle is operated or driven off of a highway. The lamps shall be:

1. Mounted at a height ~~of~~ not less than forty-two (42) inches from the ground;
2. Wired independently of all other lighting; and
3. Turned off whenever the vehicle is operated or driven upon a highway.

H. 1. A motor vehicle may be equipped with not to exceed two daytime running lamps which conform to 49 C.F.R., Section 571.108, ~~§5.5.11~~ S6.1.1.4.

2. Daytime running lamps shall not be used in substitution of headlamps.

3. Daytime running lamps shall be mounted on the front of a motor vehicle and shall be wired to be:

- a. automatically activated when the vehicle is started, and

- b. automatically deactivated when the headlamp control is in any "on" position.

SECTION 9. AMENDATORY 47 O.S. 2021, Section 12-702, is amended to read as follows:

Section 12-702. Every bicycle in use at the times ~~described~~ provided in subsection B of Section 12-201 of this title shall be equipped with a lamp on the front emitting a white light visible from a distance of at least one thousand (1,000) feet to the front. This section shall not apply to a bicycle operated on a street or highway with a speed limit of twenty-five (25) miles per hour or less.

SECTION 10. AMENDATORY 47 O.S. 2021, Section 12-703, is amended to read as follows:

Section 12-703. Every bicycle in use at the times ~~described~~ provided in subsection B of Section 12-201 of this title shall be equipped with a lamp on the rear emitting a red light visible from a distance of at least one thousand (1,000) feet to the rear. This section shall not apply to a bicycle operated on a street or highway with a speed limit of twenty-five (25) miles per hour or less.

SECTION 11. AMENDATORY 47 O.S. 2021, Section 12-706, is amended to read as follows:

Section 12-706. Every bicycle ~~when~~ in use at the times ~~described~~ provided in subsection B of Section 12-201 of this title shall be equipped with reflective material of sufficient size and reflectivity to be visible from both sides for six hundred (600) feet when directly in front of lawful lower beams of headlamps on a motor vehicle.

SECTION 12. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____